est purposes so far as they affect any of the above-described lands, and shall take precedence over but not otherwise affect the existing reservation of the lands for national forest purposes.

ROGER ERNST,
Assistant Secretary of the Interior.

JANUARY 13, 1959.

[F.R. Doc. 59-446; Filed, Jan. 16, 1959; 8:46 a.m.]

[Public Land Order 1777]

[1825763]

UTAH

Withdrawing Public Lands for Use of Department of the Army in Connection with Dugway Proving Ground; Partly Revoking Executive Order No. 8579 of October 29, 1940

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Subject to valid existing rights, the public lands within the following-described areas in Utah, which are surveyed only in part, are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral leasing laws, but not the act of July 31, 1947 (61 Stat. 681; 30 U.S.C. 601-604) as amended, and reserved for use of the Department of the Army for military purposes:

SALT LAKE MERIDIAN

T. 6 S., Rs. 13, 14, 15, and 16 W.
T. 7 S., Rs. 14, 15, and 16 W.
T. 8 S., Rs. 14, 15, and 16 W.
T. 9 S., R. 13 W.,
Secs. 4 to 9 incl.;
Secs. 14 to 36 incl.
T. 9 S., Rs. 14 and 15 W.
T. 9 S., R. 16 W.,
Secs. 1 to 30 incl.;
Sec. 31, NE¼, E½NW¼, NW¼NW¼, and N½SW¼;
Secs. 33 to 36 incl.
T. 10 S., Rs. 13, 14, and 15 W.
T. 10 S., R. 16 W.,
Secs. 1 to 5 incl.;
Sec. 6, NE¼ and S½;
Secs. 7 to 31 incl.;
Sec. 32, N½ and SE¼;
Secs. 33 to 36 incl.

The public lands in the areas described aggregate approximately 407,720 acres.

2. The withdrawal made by this order shall attach to the following-described nonpublic lands upon acquisition by the United States of title thereto or any interest therein:

SALT LAKE MERIDIAN

T. 9 S., R. 16 W.,
Sec. 31, N½SE¼ and SW¼NW¼;
Sec. 32.
T. 10 S., R. 16 W.,
Sec. 32, SW¼.

The areas described aggregate 920 acres.

3. The Department of the Air Force may use the area for flight and combat training purposes, at such time or times and in a manner consistent with the primary mission or missions of the Department of the Army in, and its jurisdiction over, the lands.

4. Executive Order No. 8579 of October 29, 1940, as amended by Executive Order No. 9526 of February 28, 1945, withdrawing lands for use of the War Department as an aerial bombing and gunnery range, is hereby revoked so far as it affects the lands withdrawn by this order.

5. The Department of the Interior retains jurisdiction over the management of the surface and subsurface resources, including mineral resources, of the lands. No disposal of such resources will be made except under applicable public-land laws with the concurrence of the Department of the Army and, where necessary, only after appropriate modification of the provisions of this order.

6. The lands withdrawn by this order are excluded from the purview of the act of February 28, 1958 (72 Stat. 27) by section 1(4) thereof.

ROGER ERNST,
Assistant Secretary of the Interior.

JANUARY 13, 1959.

[F.R. Doc. 59-447; Filed, Jan. 16, 1959; 8:46 a.m.]

Title 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Rules Amdt. 10-9; Docket No. 12295]

PART 10—PUBLIC SAFETY RADIO SERVICES

Change of Effective Date of Narrow-Band Technical Standards in Certain Bands

The Commission having under consideration the Second Report and Order in the above-entitled matter (FCC 58-1217) adopted December 17, 1958; and

It appearing that under the terms of the subject Second Report and Order, Part 10 of the Commission's rules was amended, as set forth therein, with the formal codification of such changes to be accomplished by subsequent Order of the Commission; and

It further appearing that formal codification of the changes herein ordered in Part 10 of the Commission's rules conforms, without any substantive change, to the terms in the above-described Second Report and Order, and are, therefore, editorial in nature, requiring no further public notice of rule making thereon; and

It further appearing that the formal codification herein of Part 10 to reflect the rule changes ordered in said Second Report and Order should be made effective February 1, 1959 as provided in said Second Report and Order; and

It further appearing that authority for the amendments herein ordered is contained in sections 4(i) and 303 of the Communications Act of 1934, as amended, and section 0.341 of the Commission's Statement of Delegation of Authority:

It is ordered, This 12th day of January 1959, that, effective February 1, 1959, Part 10 of the Commission's rules, Public Safety Radio Services, is amended as set forth below.

(Sec. 4, 48 Stat. 1066, as amended; 47 U.S.C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U.S.C. 303)

Released: January 14, 1959.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

Part 10, Public Safety Radio Services Rules, is amended as follows:

1. Section 10.102(c) is amended so that the portion thereof preceding the table reads as follows:

(c) In lieu of meeting the requirements of paragraph (a) of this section for the frequency ranges shown below, transmitters authorized prior to August 1, 1958, and transmitters which are operationally integrated with existing radiocommunication systems authorized prior to August 1, 1958, may conform to the following frequency tolerances until not later than October 31, 1963, provided that authorized operation continues on the same frequency. In addition, transmitters of any radiocommunication system operated at locations wholly within the limits of one or more of the territories or possessions of the United States, or in Alaska, and transmitters of a system authorized prior to August 1, 1958, which system is required to move to a different frequency due to the reallocation of frequencies previously assigned, may also conform to the following frequency tolerances until not later than October 31, 1963.

2. Section 10.104(b)(2) is amended so that the portion thereof preceding the table reads as follows:

(2) Except as provided in subparagraphs (3), (4) and (6) of this paragraph, for all F3 emission, the maximum authorized bandwidth and maximum authorized frequency deviation shall be as follows:

3. Section 10.104(b)(3) is amended to read as follows:

(3) In lieu of meeting the requirements of subparagraph (2) of this paragraph, for all F3 emission, transmitters of any radiocommunication system first authorized prior to August 1, 1958, and transmitters which are operationally integrated with such systems, may

(i) when authorized for operation in the frequency ranges 42 to 46.51 Mc, 47 to 49.51 Mc or 152 to 162 Mc, be operated with a maximum authorized bandwidth of 40 kc and a maximum frequency deviation of 15 kc until not later than July 31, 1960, provided that authorized operation continues on the same frequency. Subsequent to July 31, 1960, and until not later than October 31, 1963, such transmitters may continue to be utilized for authorized operation on the same frequency provided the frequency deviation thereof is reduced so as not to exceed ±5 kc.

(ii) when authorized for operation in the frequency ranges 46.51 to 47 Mc or 49.51 to 50 Mc, be operated with a maximum authorized bandwidth of 40 kc and a maximum frequency deviation of 15 kc until not later than October 31, 1963,